

**ENTITLED:**     **“AN ORDINANCE PURSUANT TO SECTION 2.2.1 ZONING MAP AMENDMENTS, SECTION 5.1.2 ZONING DISTRICTS ESTABLISHED, AND SECTION 5.1.3 OFFICIAL ZONING MAP, OF THE UNIFIED DEVELOPMENT CODE, CHANGING THE ZONING CLASSIFICATION FROM MR-1 MEDIUM-DENSITY RESIDENTIAL-ESTABLISHED TO MUB MIXED-USE BUSINESS EMPHASIS FOR THE N ½ OF LOTS 3 AND 4; AND LOT 2, BLOCK 252, ORIGINAL CITY, CHEYENNE, WYOMING (LOCATED AT THE SOUTHEAST CORNER OF THE INTERSECTION OF E. 21<sup>ST</sup> STREET AND ALEXANDER AVENUE)”.**

**BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:**

Section 1. That the owner of the property described herein, has applied for a zoning map amendment (“zone change”) for said property in accordance with Section 2.2.1, Zoning Map Amendment, of the Cheyenne Unified Development Code (“UDC”).

Section 2. That on December 7, 2015, the City of Cheyenne Planning Commission conducted a public hearing, reviewed the proposed zone change that is the subject of this ordinance, and recommended approval of said zone change.

Section 3. That the Governing Body of the City of Cheyenne finds that the zone change that is the subject of this ordinance meets the criteria specified in Section 2.2.1.d of the UDC.

Section 4. That, in accordance with Section 2.2.1, Zoning Map Amendment, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the UDC, the aforementioned application is hereby approved and the zoning classification of the real property described as the N ½ of Lots 3 and 4; and Lot 2, Block 252, Original City, Cheyenne, Wyoming is hereby changed to MUB Mixed-Use Business Emphasis.

Section 5. That the City Engineer is hereby authorized and directed to alter and amend the Official Zoning Map as described in 5.1.3 of the UDC to comply with the zone change as described in Section 4 above when this ordinance takes effect in accordance with Section 7 below.

Section 6. Sections, paragraphs, sentences, clauses and phrases of this ordinance are severable. If any section, paragraph, sentence, clause, or phrase of this ordinance is declared unconstitutional, such unconstitutionality shall not affect any of the remaining sections, paragraphs, sentences, clauses, and phrases.

Section 7. That this ordinance shall be in full force and effect upon its approval and publication.

**FIRST READING:** \_\_\_\_\_

**SECOND READING:** \_\_\_\_\_

**THIRD AND FINAL READING:** \_\_\_\_\_

\_\_\_\_\_  
RICHARD L. KAYSEN, MAYOR

(SEAL)  
ATTEST:

\_\_\_\_\_  
CAROL INTLEKOFER, CITY CLERK

publish date: \_\_\_\_\_

## **STAFF REPORT - SUMMATION**

### **Wyoming Eye Institute Zone District Map Amendment Process**

**CASE NUMBER(s):** UDC-15-00704

**SUBDIVISION CODE:** ORC

**PREPARED BY:** Mike Tylka

**MEETING DATES:** December 7, 2015– Planning Commission  
December 14, 2015 – City Council

**REQUIRED DOCUMENTS SUBMISSION:** The following required documents have been submitted and reviewed by staff.

- Complete Application
- Zone Change Map & Checklist

**RECOMMENDATION:** The Development Department recommends approval of the zone change request from MR-1 Medium-Density Residential-Established to MUB Mixed-Use Business Emphasis.

**PLANNING COMMISSION UPDATE:** At their December 7, 2015 meeting the Planning Commission voted 5-0 to recommend approval of the zone change and advance it to the governing body.

## STAFF REPORT

### **Wyoming Eye Institute** **Zone District Map Amendment Process**

**CASE NUMBER(s):** UDC-15-00704 **SUBDIVISION CODE:** ORC  
**PREPARED BY:** Mike Tylka  
**MEETING DATES:** December 7, 2015– Planning Commission  
December 14, 2015 – City Council

**OWNER:** Wyoming Eye Institute, LLC 307.634.2020  
Attn: Shauna McKusher  
1300 E. 20<sup>th</sup> Street  
Cheyenne, WY 82001

**AGENT:** AVI, P.C. 307.637.6017  
Attn: Brad Emmons  
1103 Old Town Lane #101  
Cheyenne, WY 82009

**PROJECT:** Wyoming Eye Institute Zone Change

**WORK DESCRIPTIONS:** Zone change from MR-1 to MUB.

**LOCATION:**

1. Legal Description: N ½ of Lots 3 and 4; and Lot 2, Block 252, Original City, Cheyenne, Wyoming
2. Location: Southeast corner of the intersection of E. 21<sup>st</sup> Street and Alexander Avenue
3. Addresses: 2019 Alexander Avenue and 1315 E. 21<sup>st</sup> Street

**SIZE:** 17,424 square feet

**CURRENT ZONING:** MR-1 Medium-Density Residential-Established  
**PROPOSED ZONING:** MUB Mixed-Use Business Emphasis  
**EXISTING LAND USE:** Two single family residences  
**PROPOSED LAND USE:** One billing office (1315 E. 21<sup>st</sup> Street) and one single family residence (2019 Alexander Avenue)

**SURROUNDING LAND USES:**

| <b>SURROUNDING</b> | <b>LAND USE(s)</b> | <b>ZONING</b> | <b>ANNEXATION STATUS</b> |
|--------------------|--------------------|---------------|--------------------------|
| North              | Residential        | MR-1          | City                     |
| South              | Commercial         | MUB           | City                     |
| East               | Residential        | MR-1          | City                     |
| West               | Commercial         | MUB           | City                     |

## **EXECUTIVE SUMMARY:**

This zone change application is for two properties located at 1315 E. 21<sup>st</sup> Street and 2019 Alexander Avenue. Both properties are owned by the Wyoming Eye Institute, LLC, who also owns the adjacent property to the south where their main facility resides. This zone change application will reassign the zone district from MR-1 Medium-Density Residential-Established to MUB Mixed-Use Business Emphasis. The owner of these properties is proposing a new use for the existing structure at 1315 E. 21<sup>st</sup> Street as a billing office and continuing the use of 2019 Alexander Avenue as a private residence.

The subject properties and the surrounding parcels have been classified as Urban Residential within PlanCheyenne. A zone district of MUB would be consistent with secondary uses described by the Urban Residential classification for use as neighborhood business. This zone change will allow for future redevelopment at the site as a majority of the parcels will be of the same zone and under the same ownership.

PlanCheyenne further supports this zone change by promoting the expansion of an existing business thus promoting economic growth, allowing possible future redevelopment in an older neighborhood, and allowing an expanded set of permitted uses that can be flexible to market demands.

***Due to meeting the review criteria of Section 2.2.1.d of the Cheyenne Unified Development Code, staff recommends approval of this zone change, advancing it to the Governing Body.***

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## **AERIAL OF SUBJECT PROPERTIES:**



**Map # 1 - Site aerial highlighting subject properties located at the southeast corner of E. 21st ST & Alexander Ave. Source: Cheyenne/Laramie County GIS Cooperative Program**

### **VIEW OF SUBJECT PROPERTIES:**



Photograph #1 – Image of 1315 E. 21<sup>ST</sup> ST. from E. 21<sup>ST</sup> ST. facing south with the WY Eye Institute's main facility in the background (Proposed billing office) Source: Mike Tylka



Photograph #2 – Image of 2019 Alexander Ave. from the intersection of E. 21<sup>ST</sup> ST. and Alexander Ave. facing southeast (Proposed to remain single family residence) Source: Mike Tylka

**ZONE CHANGE DATA:** In reviewing, providing comments, and making recommendations and decisions on a proposed Zone Change Request, the Staff, Planning Commission and City Council shall use the following criteria:

**PLANCHEYENNE** - The application is in accordance with the development policies and physical patterns identified in the Comprehensive Plan.

PlanCheyenne is supportive of this zone change.

The future land use map identifies the subject property and the immediately surrounding parcels as Urban Residential. PlanCheyenne identifies secondary uses in the Urban Residential category as supporting and complementary uses that are developed according to 'neighborhood business' patterns. The description of this pattern includes statements that place the future land category of Urban Residential as an agreeable underlying use, and office uses are included as appropriate. The proposed uses of an office and a residence align with this, but as the zone change is to MUB Mixed-Use Business Emphasis, all uses with the proposed zone should be examined to ensure that any



Map #2 – Future Land Use Source: Cheyenne/Laramie County GIS Cooperative Program

future use under this zone will not be out of place in the neighborhood.

This proposal is further supported by various sections of PlanCheyenne as follows:

- The zone change aligns with Foundation 1 "Growing as a Community of Choice" per Policy 1.1.B. This policy looks to allow development that has "flexibility to respond to market demands." The new zone classification of this property will allow commercial development, as well as, residential development.
- Principle 1.4 that states "Revitalization and infill in our urban core will increase choices for housing, employment, and services in our older neighborhoods and districts" is addressed by this request.
- Foundation 3 "Fostering Vital Economic and Activity Centers" per Policy 3.1.A is addressed directly by the zone change in allowing a local business to expand. Economic growth is encouraged by allowing the business to use a neighboring structure to expand their operations.
- Future redevelopment at the site could support Policy 2.2.B of the plan as it will provide a location for a commercial enterprise that will operate in harmony with the surrounding neighborhood.
- As no new construction is occurring, the buildings will remain in line with the general character of the design of the neighborhood.

In regards to transportation, the subject properties will operate as part of a business that has their main facility and entrance on 20<sup>th</sup> Street, a minor arterial. A connection to the transit system is available per the Northeast Route on 20<sup>th</sup> Street and this is within the suggested quarter mile transit access distance per PlanCheyenne. In addition there is an on-street bike route one block to the north. All surrounding blocks, residential and commercial, have built sidewalks to allow for safe pedestrian neighborhood travel.

In regards to parks and recreation, the subject properties are located within two blocks from Holliday Park.

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**SURROUNDING AREA** - The application is compatible with nearby property, specifically considering existing zoning, the Comprehensive Plan, and any other official plans and policies created under the guidance of that plan for these areas.

The application is consistent with the uses recommended in PlanCheyenne. As stated, the Urban Residential category is primarily intended for residential uses. The MUB Mixed-Use Business Emphasis zoning district is described as a secondary use for Urban Residential and numerous sections of PlanCheyenne, mentioned above, support neighborhood services within residential districts. The MUB zone district is compatible with the Urban Residential category. The parcel is mostly directly surrounded by blocks containing single family residences with a few small scale multi-family dwellings. Directly to the west is a block completely zoned MUB that is occupied by Win Health as an office complex and two privately owned single family residences. The subject property is two blocks from Holliday Park and an area of higher density residential zoning.

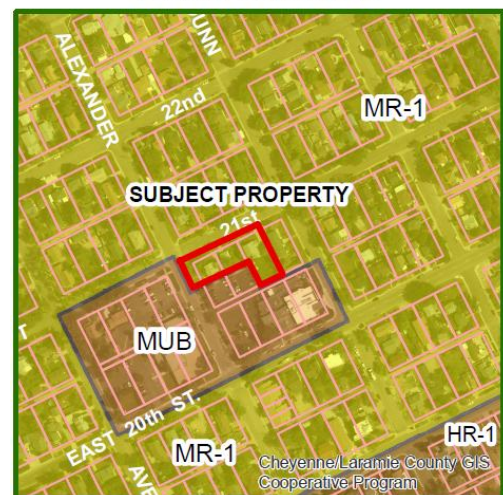
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**ZONING: BASIC STANDARDS & USES** - The suitability of the subject property for development according to the standards and uses of the existing zoning district, compared to the suitability of the subject property for development according to the standards and uses of the proposed zoning district;

The primary purpose of this zone change is to allow for a billing office operate at one of the existing structures. The secondary purpose of this change is to bring all the properties owned by the institute under the same zoning district as to allow for possible future redevelopment. The second structure is to remain a residence for the foreseeable future. Both a residential detached dwelling and an office employment use are permitted by right in the MUB zone.

The property, currently zoned MR-1, is suitable for the MUB District. A rezoning is necessary to allow for most employment and commercial uses to occur on this parcel. In the future a number of uses could occur if rezoned. These include numerous residential types by permitted right, civic uses by administrative review, and most service and commercial uses by permitted right or conditional review. Automotive, kennels, agricultural, industrial (except Limited Industrial), and storage yards or parks are not allowed. Public Services as government facilities are still allowed. This rezoning gives the parcel flexibility to meet the needs of the business on the adjoining property while expanding possible future commercial uses. Additionally the change retains the parcel's ability to be used for residential purposes.

### Zone Districts



**Map #3 – Zone Districts** Source: Cheyenne/Laramie County GIS Cooperative Program

The zone district includes design standards which provide reasonable assurance that any redevelopment will be integrated into the neighborhood consistent with PlanCheyenne.

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**STREETS & OPEN SPACE** - The ability of the subject property and surrounding vicinity to be developed according to the Subdivision Standards in Article 4 considering the proposed zoning;

The applicant is seeking to rezone the parcel as is and only make adjustments to the site to support the new use. Any additional lot requirements in regards to the new use will be addressed in the site plan review process. This neighborhood has a robust street network which supports a mix of uses in a compact neighborhood.

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**ZONING: INTENT, APPLICABILITY, & DESIGN OBJECTIVES** - The ability of the application to support the Intent and Applicability statements of the proposed zoning district, and achieve the Design Objectives of any specific standards.

The proposal and the future possibilities of redevelopment for the site support the intent of the MUB zone by "integrating uses into a walkable compact development pattern". Applicability and context of the MUB zone is met by adding a diverse mix of possible uses in an area with a high level of pedestrian, transportation, and civic amenities. The lot sizes are less than the minimum size for a newly platted parcel in this zone type as described in the UDC, but as the two subject lots would be redeveloped with the larger lot under the same ownership to the immediate south, it is deemed acceptable.

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**ZONING: FUTURE DEVELOPMENT** - The ability of all potential future development to meet all applicable standards for development in the proposed zoning district, including other development options in the event that any specific development proposed in association with the application is not executed after approval.

This zone change is being submitted with uses in mind for existing structures, but the change will allow for future development to meet standards for possible commercial redevelopment. Should this development not proceed, the parcel would be available to numerous uses. Any future substantial redevelopment will have to be reviewed administratively during the Site Review, Engineering Plan Review, and the Building Permit processes to ensure all standards are met.

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**Reviewing Agencies w/ Comments:**

- None

**Reviewing Agencies w/o Comments:**

- City Engineer (John Hall)
- Development Department (Brandon Cammarata)
- Development Department (Mike Tylka)
- Engineering Department – General (Nathan Beauheim)
- Engineering Department (David Cole)
- Engineering Department – GIS/Tech (Gary Stogsdill)
- Metro Planning Office (Nancy Olson)
- Urban Planning (Logan Graves)

**Reviewing Agencies not Responding:**

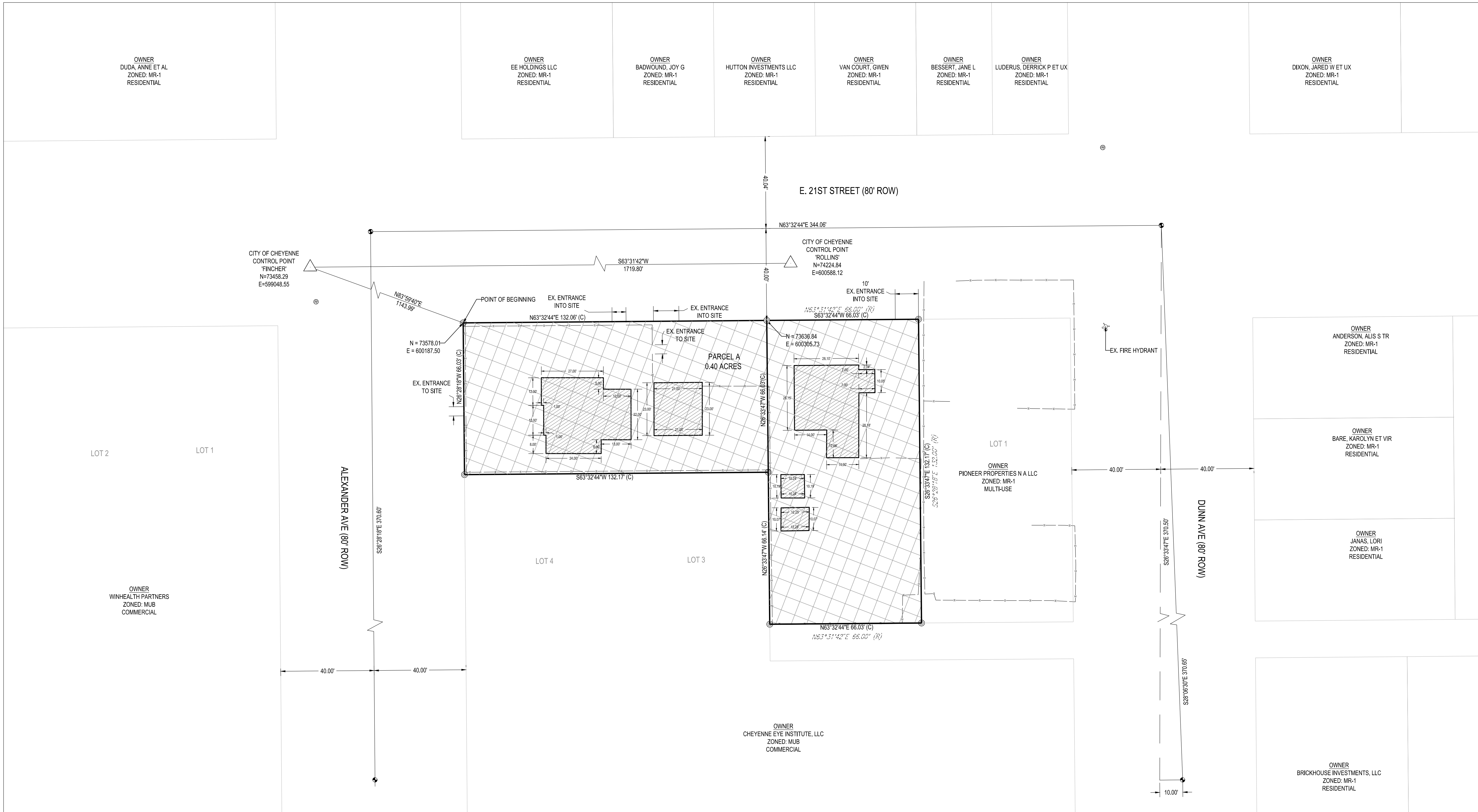
- None

**Other Comments Received:**

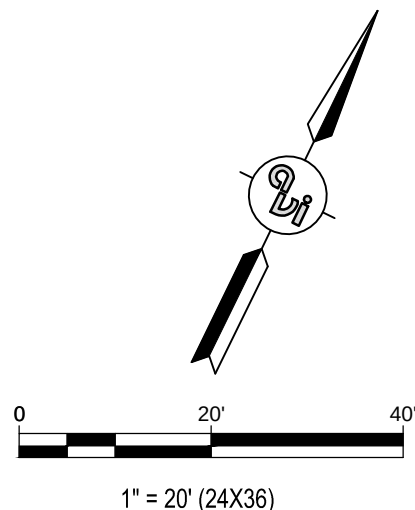
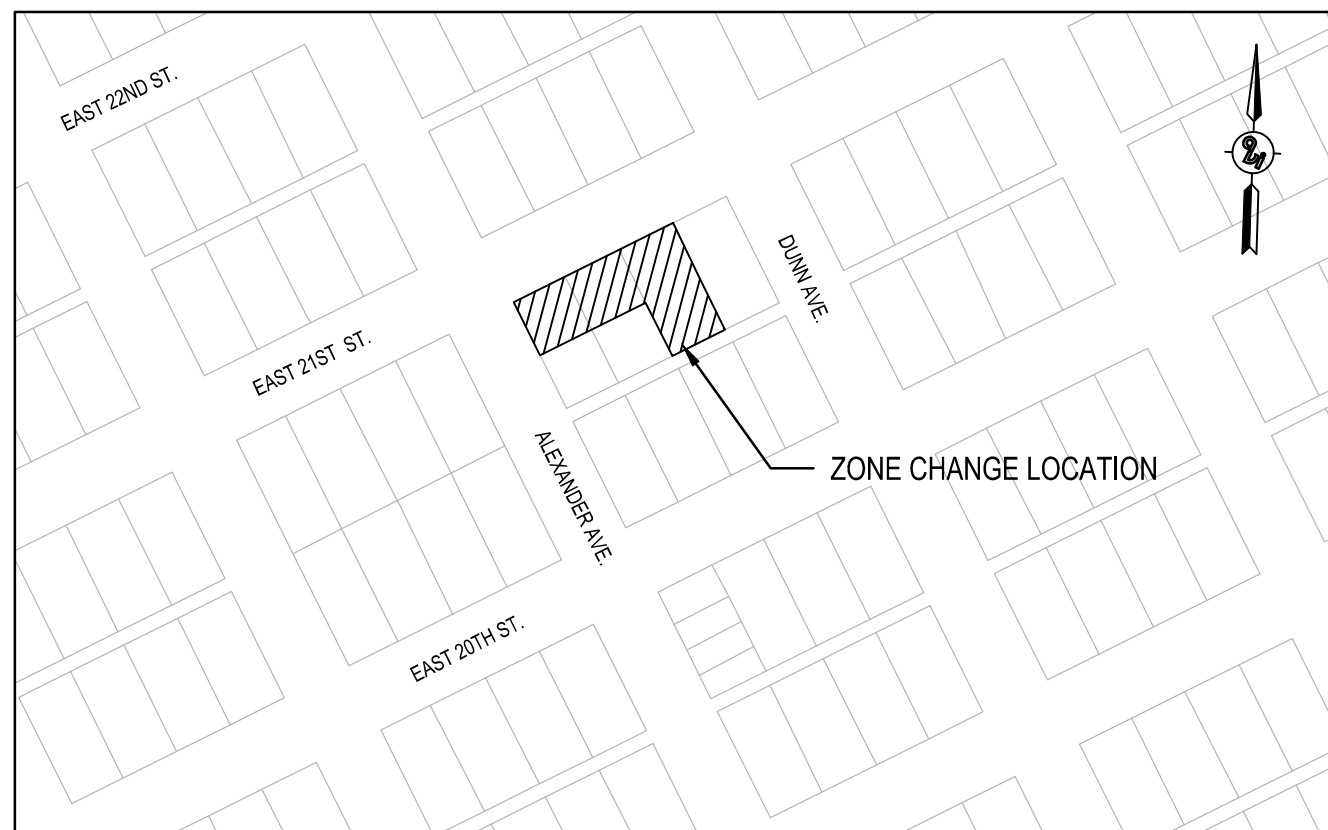
- None

Cc: Owner, Agent/Applicant, File

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VICINITY MAP  
NOT TO SCALE



- LEGEND**
- FOUND EXISTING CITY OF CHEYENNE STREET MONUMENT
  - ⊙ FOUND IRON ROD
  - ⊙ SET 2" ALUMINUM CAP WY PLS 12045
  - (C) CALCULATED DATA
  - (R) RECORD DATA FROM APP NO 3561 BY V.G BOWEN SURVEYED SEPT. 28, 1950 BY MARK M. KELLY PG 65 BOOK 437
  - ⦿ EXISTING FIRE HYDRANT
  - ▨ PROPOSED ZONING - MUB
  - ▨ EXISTING BUILDINGS TO REMAIN

**ZONING**  
CURRENT ZONING : MR-1  
PROPOSED ZONING : MUB

**PROPOSED USE**  
COMMERCIAL

**LEGAL DESCRIPTION**

A PARCEL OF LAND BEING SITUATED IN A PORTION OF THE NORTHWEST  $\frac{1}{4}$  OF SECTION 32, TOWNSHIP 14 NORTH, RANGE 66 WEST, OF THE 6TH PRINCIPAL MERIDIAN ORIGINAL CITY PLAT OF THE N  $\frac{1}{2}$  OF LOT 3 AND 4, AND LOT 2, BLOCK 252 LARAMIE COUNTY, WYOMING.

SAID PARCEL OF LAND CONTAINS 0.40 ACRES MORE OR LESS.

**ZONE CHANGE FOR CHEYENNE EYE CLINIC**

A ZONE CHANGE FOR A PORTION OF THE ORIGINAL CITY PLAT OF THE N  $\frac{1}{2}$  OF LOT 3 AND 4, AND LOT 2 BLOCK 252 BEING SITUATED IN A PORTION OF THE NORTHWEST  $\frac{1}{4}$  SECTION 32, T14N, R66W, OF THE 6TH PRINCIPAL MERIDIAN, CHEYENNE, WYOMING  
PREPARED OCTOBER 2015

| NO. | REVISION | DATE |
|-----|----------|------|
|     |          |      |
|     |          |      |
|     |          |      |
|     |          |      |
|     |          |      |

PREPARED FOR:  
**CHEYENNE EYE INSTITUTE, LLC**  
1300 E 20TH ST.  
CHEYENNE, WY 82001

PROJECT:  
**CHEYENNE EYE CLINIC**

DRAWING TITLE:  
**ZONE CHANGE**

**avi** ENGINEERING  
PLANNING  
SURVEYING  
PC

307.637.6017  
1103 OLD TOWN LANE, SUITE 101  
CHEYENNE, WY 82009  
AVI@AVIPC.COM

DATE:  
OCT. 2015

DRAWN BY:  
CC

DESIGNED BY:

CHECKED BY:  
AED

JOB NO.:  
**3839**

DRAWING NO. **1** OF **1**

# Wyoming Eye Institute Zone Change

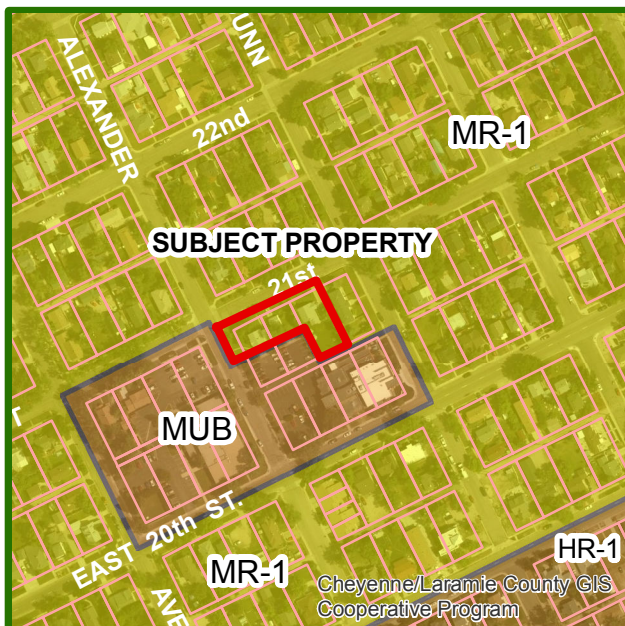


Cheyenne/Laramie County GIS Cooperative Program

Application Number  
Zone Change: UDC-15-00704  
Applicant: WY Eye Institute  
Agent: Brad Emmons, AVI, PC

0 550 1,100  
Feet

## Zone Districts



Cheyenne/Laramie County GIS Cooperative Program



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## Future Land Use



Cheyenne/Laramie County GIS Cooperative Program